CHAPTER 12

FRAMING THE CONSTITUTION

CHAPTER ESSENCE AT A GLANCE:
Master the making of the Indian Constitution (1946-1949): Constituent Assembly deliberations, Nehru's Objectives Resolution, debates on separate electorates, minority rights, Centre-State relations, and National Language.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **The Constituent Assembly Context:** Formed under the 1946 Cabinet Mission Plan; 300 members met between Dec 1946 and Nov 1949 amidst Partition violence; dominated by Congress under key leaders (Nehru, Patel, Prasad, Ambedkar).

• **Objectives Resolution (13 Dec 1946):** Moved by Jawaharlal Nehru; outlined the philosophical foundation: India as an 'Independent Sovereign Republic' guaranteeing justice, equality, freedom, and safeguards for minorities and backward tribes.

• **Debate on Separate Electorates and Minorities:** Sardar Patel, Govind Ballabh Pant, and Begum Aizaz Rasul argued against separate electorates as divisive; B.R. Ambedkar advocated social safeguards and reserved seats within joint electorates.

• **Centre-State Federal Balance and Language:** Nehru and Ambedkar secured a strong Union government with three legislative lists (Union, State, Concurrent) to preserve national unity; Language debate resolved by adopting Hindi in Devanagari script as official language alongside English.

ESSENTIAL HISTORICAL CHRONOLOGIES & THEMES

$$\text{Constituent Assembly Arc} \Longleftrightarrow \text{First Sitting (9 Dec 1946)} \rightarrow \text{Objectives Resolution} \rightarrow \text{Adoption (26 Nov 1949)}$$

Three-Year Deliberative Timeline of Constitutional Genesis

$$\text{Tripartite Legislative Distribution} \Longleftrightarrow \text{Union List (Defence/Forex)} + \text{State List (Police/Health)} + \text{Concurrent List}$$

Federal Division of Powers Balancing Unity and Autonomy

$$\text{Language Compromise} \Longleftrightarrow \text{Hindi in Devanagari (Official Language)} + \text{English (Transitional Working Medium)}$$

Resolution of North-South Linguistic Discord in the Assembly

$$\text{Core Architects} \rightarrow \{\text{Dr. B.R. Ambedkar (Drafting)}, \text{Jawaharlal Nehru (Philosophy)}, \text{Sardar Patel (Integrity)}\}$$

Pivotal Leadership Trinity of the Constitution of India

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** The Constitution was adopted on 26 November 1949, but came into legal effect on 26 January 1950 (celebrating the 1930 Purna Swaraj anniversary).

• **Alert:** Dr. B.R. Ambedkar was Chairman of the Drafting Committee; Dr. Rajendra Prasad was the permanent President of the Constituent Assembly.

• **Alert:** Hindi was declared the 'Official Language' of the Union, NOT the 'National Language'; English was retained for official purposes to protect southern non-Hindi linguistic interests.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. What was the 'Objectives Resolution' moved by Jawaharlal Nehru in the Constituent Assembly on 13 December 1946? Explain its significance. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **Meaning:** A historic resolution outlining the ideals and guiding principles that should govern the drafting of the Constitution of independent India. **[1.5 Marks]**

• **Key Principles:** Declared India as an 'Independent Sovereign Republic', guaranteed social, economic, and political justice to all citizens, promised equality of status and opportunity, and pledged adequate safeguards for minorities, backward classes, and tribal areas. **[1.5 Marks]**

• **Significance:** Provided the philosophical foundation and moral blueprint for the Preamble of the Indian Constitution. **[1 Mark]**

2. Explain why the Constituent Assembly rejected the demand for separate electorates for religious minorities. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **Divisive Colonial Legacy:** Separate electorates introduced by the British in 1909 had poisoned communal relations, divided communities, and culminated in the tragic Partition of India. **[1.5 Marks]**

• **Arguments of Leaders:** Sardar Patel warned that separate electorates would permanently alienate minorities from the national mainstream, while Begum Aizaz Rasul asserted that separate electorates were self-destructive for Muslim interests. **[1.5 Marks]**

• **Adoption of Joint Electorates:** The Assembly unanimously decided on joint electorates with universal adult franchise, safeguarding minority political representation while fostering national unity. **[1 Mark]**

3. Why did members like Dr. B.R. Ambedkar and Jawaharlal Nehru advocate for a strong Central government in the Constitution? [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Preserving National Unity:** The trauma and communal carnage of Partition convinced leaders that a weak center would lead to the disintegration of India into warring provinces. **[1.5 Marks]**

• **Economic Planning and Social Reform:** A strong Centre with wide fiscal and administrative powers was essential to coordinate planned industrial development, fight poverty, and overcome regional economic disparities. **[1.5 Marks]**

4. How did the Constituent Assembly resolve the intense controversy over the National Language? [Score: 3 Marks]

Answer & Key Valuation Steps:

• **The Conflict:** Supporters of Hindi (like R.V. Dhulekar) demanded Hindi in Devanagari script be made the sole National Language; members from southern India (like T.A. Ramalingam Chettiar) strongly opposed this, fearing northern linguistic dominance. **[1.5 Marks]**

• **The Compromise Formula:** Hindi in Devanagari script was declared the 'Official Language' of the Union (not National Language), while English was retained for official communication for an initial transitional period of 15 years. **[1.5 Marks]**

5. What was the role of Dr. B.R. Ambedkar in the making of the Indian Constitution? [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Chairman of Drafting Committee:** Guided, scrutinized, and shaped every clause of the Draft Constitution, skillfully piloting it through intense Assembly debates to ensure democratic and egalitarian principles. **[2 Marks]**

6. Distinguish between the historical significance of 26 November 1949 and 26 January 1950 in Indian constitutional history. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **26 November 1949:** The date on which the Constituent Assembly formally passed, enacted, and adopted the Constitution of India (Constitution Day). **[1 Mark]**

• **26 January 1950:** The date on which the Constitution came into legal effect, transforming India into a Sovereign Democratic Republic (Republic Day), commemorating the 1930 Purna Swaraj pledge. **[1 Mark]**